SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

FILED
Superior Court of California
County of San Francisco
APPELLATE DIVISION
JAN 05 2024
CLERK OF THE COURT
BY: Deputy Clerk

| | |
|---|---|
| **Ismail Merino,**<br>*Petitioner,*<br>v.<br>**San Francisco Superior Court,**<br>*Respondent;*<br>**People of the State of California,**<br>*Real Party in Interest.* | No. APP-24-8740<br><br>Superior Court No. 23006243 |

**EMERGENCY APPLICATION FOR STAY OF TRIAL PROCEEDINGS AND PROPOSED ORDER**

***Jury trial on January 8, 2024 at 9:00 a.m.***
***Hon. Gerardo Sandoval, Department 514, tel. (415) 551 3788***

Manohar Raju, Public Defender
Matt Gonzalez, Chief Attorney
Oliver Kroll, SBN 295333
Charlie Dickson, SBN 316391
oliver.kroll@sfgov.org
555 Seventh St
San Francisco, CA 94103
(415) 575 8831

*Attorneys for Petitioner*

Pursuant to rule 8.806 of the California Rules of Court, petitioner Ismail Merino respectfully applies for a stay of trial proceedings.

Merino previously applied for a stay in his writ petition, filed on January 2, 2024. (See Petition, p. 10, ¶¶ 25–26.) The Court has not ruled on this request. He renews this application because his jury trial is now scheduled to begin on Monday, January 8, 2024.

An stay is necessary for two reasons: *first*, to avoid the irreparable harm of Merino being subjected to a time-barred jury trial, and possible conviction and imprisonment, when he is entitled to dismissal under Penal Code section 1382; *second*, to ensure that this Court has the opportunity to consider and decide Merino's petition, which might be rendered moot if the case proceeds to judgment. A stay is further justified because Merino acted with the greatest possible dispatch in presenting these applications, and he is likely to succeed on the merits of his petition.

## I. Merino's case is assigned to trial on January 8, and his renewed motion to dismiss is denied

Merino's last day for trial in his misdemeanor DUI case was December 26, 2023. (Petition, p. 8, ¶ 13.) On that day, although trial courtrooms were available, the prosecution was not ready for trial, having failed to interview its expert, obtain an opinion, or place the expert under subpoena. (*Id.* at pp. 8–9, ¶¶ 14–19.) Respondent court nevertheless granted a continuance, relying on the "public safety risk" that Merino would pose if it dismissed the case. (*Id.* at p. 9, ¶ 20.) The court denied Merino's motion to dismiss pursuant to Penal Code section 1382, but warned that it would dismiss the case if there was any more "nonsense," and remarked: "You can writ me if you need to." (*Id.* at p. 9, ¶¶ 20–21.)

Respondent court called Merino's case again today, and assigned it for trial before Judge Sandoval in department 514, to begin on Monday, January 8, 2024 at 9 am. (Declaration of Oliver Kroll, ¶ 2.)

Merino orally renewed his motion to dismiss the case pursuant to Penal Code section 1382.[1] The superior court denied the motion. (*Id.* at ¶ 3.)

## II. A stay should be granted to avoid irreparable harm to Merino and to enable this Court to consider his petition

A stay should be granted for two reasons.

*First*, Merino would be irreparably harmed by being subjected to a jury trial, and possible conviction and imprisonment, despite being entitled to a dismissal under Penal Code section 1382. The statutory speedy trial right is designed to "protect the accused from having criminal charges pending against him for an undue length of time." (*People v. Wilson* (1963) 60 Cal.2d 139, 151.) If a time-barred trial goes ahead, a postconviction appeal comes "too late" to remedy that injury. (*Ibid.*) That is why California courts insist that defendants "seek review of speedy trial claims before trial." (*People v. Johnson* (1980) 26 Cal.3d 557, 574.) For that reason, appellate courts have frequently stayed trials to consider speedy trial claims. (See *Elias v. Superior Court* (2022) 78 Cal.App.5th 926, 932 [trial stayed to enable consideration of

---

[1] A written motion is not required. In *Owens v. Superior Court*, the petitioner orally moved to dismiss on speedy trial grounds on the statutory last day, and renewed his motion to dismiss the next time the case was called—exactly as Merino did here. (*Owens v. Superior Court* (1980) 28 Cal.3d 238, 243.) Our Supreme Court found a speedy trial violation, and issued a writ of mandate. (*Id.* at p. 253; accord *Lewis v. Superior Court* (1981) 122 Cal.App.3d 494, 496, 499 [reversing order denying oral motion to dismiss]; *People v. Superior Court (Alexander)* (1995) 31 Cal.App.4th 1119, 1125–1126, 1134 [affirming order granting oral motion to dismiss].)

speedy trial claim]; *Miller v. Superior Court* (2002) 101 Cal.App.4th 728, 738 [same]; *Stabio v. Superior Court* (1994) 21 Cal.App.4th 1488, 1493 [same]; *Ibarra v. Municipal Court* (1984) 162 Cal.App.3d 853, 856 [same]; *Lewis v. Superior Court* (1981) 122 Cal.App.3d 494, 496–497 [same]; *Arias v. Superior Court* (2008) 167 Cal.App.4th Supp. 1, 3 [same].)

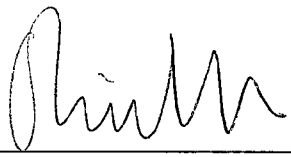
*Second*, if the case proceeds to judgment, this petition might be rendered moot, since respondent court would lose jurisdiction, and this Court would therefore no longer be able to grant relief. (See *Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1574 ["pivotal question" in mootness inquiry is whether court can grant effectual relief].) A stay would eliminate this risk and give the Court time to properly consider Merino's petition. Granting the stay now would also reduce inconvenience to jury panel members, who might otherwise be summoned and then dismissed if this Court grants relief.

Finally, Merino has a strong likelihood of success on the merits. As explained in the petition, the prosecution's negligence is not good cause for a delay, and respondent court erred by considering irrelevant factors such as Merino's criminal history. (Petition, pp. 15–16.) Merino also acted diligently in presenting his claim and stay application to this Court. He filed his petition promptly after he received the audio recording of proceedings on December 26, 2023. And he presents this renewed stay application less than two hours after he was sent out to trial.

## II. Conclusion

For these reasons, the Court should stay trial proceedings.

Respectfully submitted,



Oliver Kroll
*Attorney for Petitioner*

## DECLARATION OF OLIVER KROLL

I, Oliver Kroll, declare:

1. I am an attorney licensed to practice in California. I am employed by the San Francisco Public Defender. I represent petitioner Ismail Merino.

2. On January 5, 2024, Merino's case was called in department 17 of respondent court. The court assigned the jury trial to department 514, before Judge Sandoval, to begin on Monday, January 8, 2024.

3. Merino renewed his motion to dismiss pursuant to Penal Code section 1382. Respondent court denied the motion.

4. I have ordered a transcript of the proceedings in department 17 today. I requested a one-day turnaround time, the fastest possible service. I expect it to be prepared early next week.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on January 5, 2024, at San Francisco, California.

Oliver Kroll

SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

| | |
|---|---|
| **Ismail Merino,**<br>*Petitioner*,<br>v.<br>**San Francisco Superior Court,**<br>*Respondent*;<br>**People of the State of California,**<br>*Real Party in Interest.* | No. APP-24-8740<br><br>Superior Court No. 23006243 |

**[PROPOSED] ORDER STAYING TRIAL PROCEEDINGS**

Before the Court is Petitioner Ismail Merino's Emergency Application for Stay of Trial Proceedings.

For good cause shown, the trial in *People v. Ismail Merino*, no. 23006243, is **STAYED** until further order of this Court.

_____

Judge of the Superior Court

SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

| | |
|---|---|
| **Ismail Merino,**<br>*Petitioner*,<br>v.<br>**San Francisco Superior Court,**<br>*Respondent*;<br>**People of the State of California,**<br>*Real Party in Interest.* | No. APP-24-8740<br><br>Superior Court No. 23006243 |

**PROOF OF SERVICE OF**
**EMERGENCY APPLICATION FOR STAY OF TRIAL PROCEEDINGS**
**AND PROPOSED ORDER**

Manohar Raju, Public Defender
Matt Gonzalez, Chief Attorney
Oliver Kroll, SBN 295333
Charlie Dickson, SBN 316391
oliver.kroll@sfgov.org
555 Seventh St
San Francisco, CA 94103
(415) 575 8831

*Attorneys for Petitioner*

I, Oliver Kroll, declare:

I am over eighteen years of age and not a party to this action. My business address is 555 Seventh St, San Francisco, CA 94103.

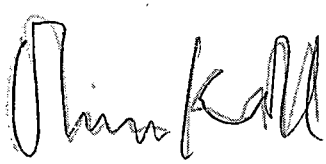
On January 2, 2024, I served the **Emergency Application for Stay of Trial Proceedings and Proposed Order** electronically on:

San Francisco District Attorney
350 Rhode Island St., North Building, Suite 400N
San Francisco, CA 94103
sfda.writappservice@sfgov.org

Attorney General of the State of California
455 Golden Gate Ave., Suite 11000
San Francisco, CA 94102
sfagdocketing@doj.ca.gov

Hon. Vedica Puri
850 Bryant St, Room 101
San Francisco, CA 94103
vpuri@sftc.org

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on January 5, 2024, at San Francisco, California.



Oliver Kroll